

25 increase in our assisted living facility customer base. Cost of revenues for the year ended June 30, 2011 of \$13.2 million was 67.9% of revenues. Cost of revenues for the year ended June 30, 2010 of \$15.5 million was 39.6% of revenues. The lower gross margin for the fiscal year ended June 30, 2011 of 32.1% (versus 60.4% for the prior fiscal year) was a result of lower volume. The Company, which is largely leveraged on volume, made investments in its infrastructure during the first half of calendar year 2010 in order to provide for the capacity to take on large increases in volume. As a result, the combination of lower volume and greater capacity creates negative leverage and adversely impacts gross margin. Selling, general and administrative ("SG&A") expenses for the year ended June 30, 2011 of \$9.8 million, increased by \$1.0 million, from SG&A expenses of \$8.8 million for the year ended June 30, 2010. The increase in SG&A expense is primarily due to higher (i) professional expenses of \$0.4 million (primarily due to regulatory and consulting related fees, legal fees, audit and related fees, and other sales-related consulting fees), (ii) compensation and benefit expense including payroll tax of \$0.2 million (primarily due to timing of employee hires and terminations), (iii) costs associated with a legal settlement of \$0.35 million and (iv) severance costs of \$0.05 million. Regarding costs associated with a legal settlement included in SG&A expense, the Company settled a suit in which the plaintiff alleged violations of the Telephone Consumer Protection Act. Although the Company believes it did not violate any laws, the Company settled the lawsuit in the interest of avoiding additional legal costs and diverting time and focus from growing the business. During the first quarter of fiscal year 2011, the Company recorded a special charge of \$0.6 million on a pre-tax basis, or \$0.02 per diluted loss per share, which represents expenses incurred with the retirement of the Company's former Chief Executive Officer, Dr. Burton Kunik. The special charge consists of (i) severance-related items totaling \$0.5 million, (ii) non-cash stock-based compensation expense of \$0.1 million (resulting from accelerated vesting of stock option awards), and (iii) legal fees related to the separation agreement of less than \$0.1 million. The Company paid Dr. Kunik \$0.1 million in September 2010 and \$0.4 million in April 2011 related to the expenses noted above. The Company generated an operating loss of \$4.5 million for the year ended June 30, 2011 compared to an operating income of \$14.4 million for the year ended June 30, 2010. The operating margin was (23.4%) for the year ended June 30, 2011 compared to 36.8% for the year ended June 30, 2010. The decrease in operating income and operating margin is a result of the above mentioned decrease in revenue and operating leverage inherent in the Company's business model. The Company generated a loss before income taxes of \$4.5 million for the year ended June 30, 2011 versus income before income taxes of \$14.4 million for the year ended June 30, 2010. The decrease in income before income taxes is a result of lower operating income (discussed above). The Company's effective tax rate for the year ended June 30, 2011 was 33.8% compared to 35.2% for the year ended June 30, 2010. The Company uses estimates in providing for income taxes on a year to date basis and those estimates may change in subsequent interim periods. The Company generated a net loss of \$3.0 million for the year ended June 30, 2011 compared to net income of \$9.4 million for the year ended June 30, 2010. The decrease in net income is a result of lower operating income (discussed above). The Company reported diluted loss per share of (\$0.20) for the year ended June 30, 2011 versus diluted earnings per share of \$0.63 for the year ended June 30, 2010. The decrease in diluted earnings per share is a result of a lower net income (discussed above).